

Chief Justice's Court

Case :- WRIT - C No. - 12822 of 2016

Petitioner :- Pokhpal

Respondent :- D.V.V.N.Ltd. Tru' Managing Director And 3 Others

Counsel for Petitioner :- Anshul Kumar Singhal, Vinod Kumar Agarwal

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Dr. Dhananjaya Yeshwant Chandrachud, Chief Justice
Hon'ble Yashwant Varma, J.

The petitioner seeks an order restraining the second and third respondents from granting an electricity connection to the fourth respondent in the absence of the consent of the co-owner, relying on the provisions of the UP Electricity Supply Code, 2005. The suit for partition filed by the petitioner (Suit No. 183 of 2012) is pending.

Hence, we do not consider it appropriate and proper to entertain the writ petition under Article 226 for that relief.

However, we leave it open to the petitioner to pursue his rights and remedies in the pending proceedings in the suit.

The petition is, accordingly, dismissed. There shall be no order as to costs.

Order Date :- 1.4.2016

RK

(Yashwant Varma, J) (Dr D Y Chandrachud, CJ)